

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
JUVENILE DEPARTMENT

In the Matter of:

Case No.: 25JU04261

ALMIRA DAVIS,
A Child.

**SPECIAL APPEARANCE AND
OBJECTION TO PROCEED;
MOTION TO COMPEL
PRODUCTION OF CASE FILE;
MOTION TO VACATE OR DISMISS
(IN THE ALTERNATIVE)
FOR LACK OF SERVICE AND
FAILURE OF STATUTORY
COMPLIANCE**

MOTHER'S THIRD SPECIAL APPEARANCE

Written Filing in Lieu of Personal Appearance Pursuant to ORS 419B.305; Jurisdictional
Objections

AshLe' Penn, mother of Almira Penn, appears specially and solely for the purpose of objecting to this Court's exercise of personal jurisdiction and of placing on the record the following grounds for immediate continuance and procedural correction. This appearance does not constitute a general appearance, waiver of service, or submission to jurisdiction for any purpose beyond that expressly stated herein. Mother, AshLe' Penn, respectfully moves for an order compelling production of the complete DHS case file and the complete circuit court file for this matter, and appears specially and solely to object to the Court proceeding or entering substantive findings affecting her parental rights without lawful service, reasonable notice, and meaningful access to the records and information necessary to defend. This filing is not a general appearance and does not waive defects in service or notice.

1 **I. MOTHER HAS NEVER — NOT ONCE — RECEIVED NOTICE OF**
2 **ANY FOUNDED ALLEGATION OR SPECIFIC ALLEGATION OF**
3 **HARM**

4 This is not a procedural technicality. It is the foundational constitutional defect in these
5 proceedings, and it has never been cured.

6 **A. What Oregon Law Requires**

7 Before DHS may exercise protective custody over a child and initiate dependency proceedings
8 that implicate a parent’s fundamental liberty interest, Oregon law establishes a mandatory
9 sequence. Under ORS 419B.020 and ORS 419B.023, jurisdiction attaches only where the
10 child falls within a defined statutory category — typically, that the child has been subjected
11 to abuse, neglect, or is in danger thereof. Where DHS makes a founded determination of
12 abuse or neglect — the formal administrative finding that triggers the dependency process
13 — Oregon law and administrative rule (OAR 413-010-0000 et seq.) require DHS to provide
14 the subject parent with written notice of: (1) the nature of the founded finding, (2) the
15 specific conduct or circumstances that support it, (3) the identity of the child involved, and
16 (4) the parent’s right to request a contested case hearing to challenge the finding.

17 The U.S. Supreme Court has held that the Due Process Clause of the Fourteenth
18 Amendment requires, at minimum, notice of the specific charges or findings that justify
19 state interference with parental rights, and a meaningful opportunity to be heard before
20 that interference is made permanent. *Santosky v. Kramer*, 455 US 745, 753 (1982); *Troxel*
21 *v. Granville* 530 US 57, 65 (2000). A parent cannot defend against allegations she has never
22 been told exist.

23 **B. What DHS Did — and Did Not Do**

24 Mother has been involved in these proceedings since September 6, 2025. As of today’s
25 hearing date, Mother has never received written notice of any founded allegation, any specific
26 allegation of abuse or neglect, or any formal determination that she posed a risk of harm to
27 her children. This is confirmed by the following documented record:

- 28 • No founded allegation letter has ever been served on or delivered to Mother — at any

1 point before, during, or after removal.

2 • DHS's own records, produced approximately two weeks ago after a nine-month delay in
3 response to Mother's May 2025 public records request, contain no founded determination,
4 no abuse assessment, and no documented finding of parental risk.

5 • Sonya Faulkner, when presented with Mother's written documentation of these defects
6 prior to today's hearing, did not identify or reference any founded allegation in her response
7 — because no such allegation has been formally made.

8 • The stated bases for removal — a statement the agency has record was at worst - recanted
9 but at best was claimed never to have been said by Al-mira. The agency was prepared to
10 release Mother's child to her the night of the incident with her father (9/6/25) and somehow
11 has correlated an alleged statement of self-harm (one the agency concedes was recanted -
12 but what Al-mira claims was never said by her) is tantamount to the stated allegations of
13 parental capacity and parental conduct constituting danger. This is irreconcilable.

14 The agency has not demonstrated even the most minuscule effort to evaluate mother's
15 capacity to parent and does not have any evidence (according to records recently recieved)
16 of Mother having behaved dangerously.

17 **C. The Legal Consequence Is Dispositive**

18 This failure creates a fatal fork. Either DHS made a founded determination and failed to
19 notify Mother of it — a direct violation of ORS 419B.023, OAR 413-010-0000, and the Due
20 Process Clause — or DHS never made a founded determination at all, in which case the
21 statutory predicate for invoking this Court's dependency jurisdiction was never established.
22 There is no third option that permits these proceedings to continue. A court proceeding
23 built on an unfounded or unnoticed allegation is not merely irregular — it is void for want
24 of the threshold jurisdictional predicate.

25 **II. THE FOUNDED-ALLEGATION DEFECT IS PART OF A BROADER** 26 **PATTERN OF DUE PROCESS DEPRIVATION**

27 The failure to provide founded-allegation notice is not an isolated omission. It is the
28 most extreme manifestation of a consistent pattern in which Mother has been denied every

procedural protection Oregon law guarantees to a parent facing loss of her child:

- No pre-removal assessment: DHS authorized release of Almira to Mother at 5:40 PM on September 6, 2025. At 5:59 PM — 19 minutes later — DHS reversed that decision based on an alleged statement by Almira, which Almira subsequently denied making. No parental capacity assessment was conducted at any point before removal.
- No services offered: No services were offered to Mother until October 1, 2025 — weeks after removal. No written conditions for return have ever been provided. This violates Oregon’s duty under 42 USC § 671(a)(15) and ORS 419B.340 to make reasonable efforts prior to removal.
- No summons before shelter hearing: The shelter hearing occurred September 8, 2025. The first documented service attempt occurred October 14, 2025 — confirmed by recorded call with caseworker David Milne. The court clerk’s notation that Mother ‘failed to appear’ at the September 8 hearing is legally incoherent: one cannot be found in default for non-appearance at a proceeding for which no lawful notice was given.
- Today’s hearing — text message notice: Mother learned of today’s proceeding by text message received this morning. This is not lawful notice under ORS 419B.305.
- Jurisdictional challenge discarded: Mother filed a written jurisdictional challenge with the clerk — a recognized method of special appearance under Oregon law. The clerk discarded it without docketing. Mother’s ORCP 21 motion was subsequently denied on the ground that ORCP does not apply. Both rulings foreclosed Mother’s only available mechanisms for contesting the threshold defects now presented to this Court.

III. DHS’S OWN RECORDS ESTABLISH NO EVIDENTIARY BASIS FOR REMOVAL OR CONTINUED WARDSHIP

After nine months of delay — and only after Mother filed and pursued a public records request submitted in May 2025 — DHS produced its records approximately two weeks ago. Mother has reviewed them in their entirety. They contain no founded determination, no parental capacity assessment, no risk assessment, no documentation of reasonable efforts to prevent removal, and no written conditions for return. The agency’s own file does not

1 support the allegations that gave rise to this case. This Court should not permit continued
2 wardship to rest on a foundation the agency itself cannot document.

3 **IV. SONYA FAULKNER'S NON-RESPONSE CONFIRMS THE ABSENCE** 4 **OF LEGITIMATE GROUNDS**

5 Prior to today's hearing, Mother provided Sonya Faulkner with detailed written documenta-
6 tion of every procedural deficiency identified above, including the complete absence of any
7 founded allegation notice. Ms. Faulkner's response did not address a single identified issue.
8 A manager's silence in the face of documented constitutional violations does not cure those
9 violations. It confirms them.

10 **A. Mother has a right to meaningful access to the case file**

11 Mother has been denied copies of the case file by court order and has been told she may only
12 inspect documents in person. That restriction prevents meaningful participation, prevents
13 Mother from preparing a defense, and prevents Mother from litigating service, notice, and
14 statutory compliance defects.

15 **V. MOTION TO COMPEL PRODUCTION OF CASE FILE**

16 **A. Procedural obstruction and inability to make a record**

17 1. Mother previously filed challenges intended to bring service and statutory compliance
18 defects to the Circuit Court. A filing was discarded by the clerk.

19 2. The combined effect of denied copies, delayed production, and procedural barriers has
20 prevented Mother from meaningfully participating and from creating an accurate record
21 of agency noncompliance.

22 1. Mother requested copies of her DHS records and case materials in May 2025. DHS did
23 not produce records until approximately two weeks ago.

24 2. The Court has restricted Mother to in-person inspection only, without copies. That
25 restriction deprives Mother of practical access to prepare for hearings and to address
26 service, notice, and statutory compliance defects.

27 **B. The restriction on copying prevents a fair opportunity to be heard**

28 3. Without complete copies of the file, Mother cannot:

- (a) review the petition, summons, return of service, and proof of notice with particularity;
 - (b) identify inconsistencies, omissions, or documentary evidence of agency noncompliance;
 - (c) corroborate the timeline of service attempts, records production, alleged reasonable efforts, and alleged services;
 - (d) prepare evidence and written objections for hearings conducted in her absence;
 - (e) meaningfully assert procedural objections, including objections to jurisdiction, service, and notice.
4. Restricting a parent to in-person inspection only converts access into a hollow formality and denies meaningful participation.

VI. RELIEF REQUESTED

Mother respectfully requests that this Court:

1. Continue today's hearing until Mother has been served by lawful process and provided adequate advance notice consistent with ORS 419B.305;
2. Require DHS to produce — on the record, before any further proceedings — the founded allegation determination, if one exists, and the written notice of that determination that was required to be served on Mother under ORS 419B.023 and OAR 413-010-0000 et seq.;
3. If DHS cannot produce a founded determination and proof of notice, dismiss or stay these proceedings for want of the jurisdictional predicate required by ORS 419B.020;
4. Take judicial notice that DHS's own produced records contain no documented finding of risk, no parental capacity assessment, and no documentation of reasonable efforts to prevent removal;
5. Order the clerk to docket this filing and all future filings by Mother without alteration or rejection; and
6. Produce the court file as is required by the statutory scheme of ORS §419B when requested by a parent of a child involved with juvenile dependency.
7. Grant such other relief as the Court deems necessary to protect Mother's fundamental constitutional right to the care and custody of her child.

Mother expressly preserves all objections to personal jurisdiction, subject matter jurisdiction,

1 service of process, and venue. This special appearance shall not be construed as a general
2 appearance for any purpose. Mother respectfully requests that the Court order DHS to
3 produce, within 48 hours, complete copies of all documents in the DHS file and the court
4 file, including but not limited to:

- 5 (a) the dependency petition and any amendments;
- 6 (b) summons, returns, proofs of service, and all hearing notices;
- 7 (c) all DHS notes, chronologies, contact logs, and narrative summaries;
- 8 (d) all safety assessments, capacity assessments, and written conditions for return (if any);
- 9 (e) all service plans, referrals, and documentation of offered or provided services (if any);
- 10 (f) all visitation records, visitation logs, denials, and scheduling communications (if any);
- 11 (g) all correspondence (including emails/texts) between DHS and Mother relating to this
12 matter;
- 13 (h) all reports relied upon to justify removal or continued jurisdiction (including any law
14 enforcement or provider materials);
- 15 (i) all court orders, findings, shelter findings, reasonable efforts findings, and judgments
16 entered in this case.

17 In the alternative, Mother requests that the Court stay or continue any substantive
18 hearing until Mother has had a meaningful opportunity to review the complete file and
19 prepare.

20 DATED: February 23, 2026.

21
22
23 Respectfully submitted,

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26

27 /s/ AshLe' Penn

28 *In Propria Persona*